

A G R E E M E N T

By and Between

NETCENTRIC TECHNOLOGY, LLC

and

**TEAMSTERS LOCAL 959
OF THE
INTERNATIONAL BROTHERHOOD OF TEAMSTERS**

June 1, 2023 - May 31, 2026

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

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ARTICLE 1
ADMINISTRATION OF AGREEMENT

1.01 Agreement. This Agreement, effective June 1, 2023, between NetCentric Technology, LLC., hereinafter referred to as the Company, and Teamsters Local 959 of the International Brotherhood of Teamsters, hereinafter referred to as the Union, for employees represented by the Union at the Fairbanks Command and Data Acquisition Station (FCDAS) at Fairbanks, Alaska.

1.02 Purpose. The Union, representing employees of the Company, and the Company desire to establish and maintain, through harmonious cooperation, a standard of conditions and procedures to provide for: orderly collective bargaining relations; prompt and equitable disposition of grievances; and fair wages, hours, and working conditions for the employees covered by this Agreement. To further these purposes, representatives of the Company or the Union may request a conference at any time to discuss any general condition that may exist at the FCDAS.

1.03 Recognition of Bargaining Unit. The Company recognizes the Union as the sole and exclusive bargaining representative as certified by the National Labor Relations Board for the purpose of collective bargaining with respect to rates of pay, wages, benefits, working conditions, safety, hours of work, and other conditions of employment for all employees in occupational classifications set forth in Schedule 1, to include all subsections of this Agreement, at the Company's FCDAS at Fairbanks, Alaska; but EXCLUDING all professional employees, supervisors, and guards as defined in the Act.

1.04 Union Shop.

It shall be a condition of employment that all bargaining unit employees become and remain members in good standing with the Union, or pay an agency fee to the Union. Becoming a member in good standing requires a bargaining unit employee to pay to the Union an initiation fee, regular monthly dues, and supplemental dues. The agency fee shall not exceed the amounts required for initiation, regular monthly dues and supplemental Union dues. This requirement to become a member in good standing, or to pay and to remain current on the agency fees, shall become effective on the thirty-first (31st) day following the bargaining unit employee's first (1st) day of employment, or the thirty-first (31st) day following the execution of this Agreement, whichever occurs later.

The Employer shall, fourteen (14) calendar days after receiving written notice from the Union, terminate the employment of any bargaining unit employee(s) not in good standing. A bargaining unit employee may become a member in good standing, or become current on agency fees, thus avoiding termination from employment, up to the day of termination. The Union shall indemnify, defend, and hold harmless the Employer from any liability arising out of this Union security clause.

1.05 Work Covered. The work covered by this Agreement is work within the scope of the Company's contract with and as directed by NOAA, with respect to the FCDAS, and

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shall consist only of the operation, maintenance, installation, repair of electronic and electromechanical and antenna equipment, and related support functions when such work is performed by employees covered by this Agreement who are regularly employed and assigned to the FCDAS at Fairbanks, Alaska.

Installation team work may be performed by non-bargaining unit employees of the Company up to a maximum of thirty (30) calendar days per installation. If the installation requires longer than thirty (30) calendar days for completion, the non-bargaining unit employees must join the Union. Depot level maintenance work is not bargaining unit work, except where antenna and electronics work shall be performed by bargaining unit employees. If possible, the Company shall notify the Union at least seven (7) calendar days in advance before the start date of such work.

Any parts purchased locally or ordered through NOAA logistics while the DLM Team is on site, will be handled by Local 959 bargaining unit logistics personnel. Normal day-to-day handling and disbursement of parts from the parts stock brought to the site by the DLM Team will be handled by DLM Team personnel.

1.06 Working Assignments. Employees outside the bargaining unit shall not perform the regular and exclusive work of bargaining unit employees, except for the purposes of instruction and experimentation, and in emergency situations. For purposes of this provision, "experimentation" shall mean an engineering effort to determine feasibility of changing functions or performances of existing equipment in order to accomplish new requirements. Such experimentation will not be performed for the purpose of operating or maintaining Station equipment. This clause shall not be used for the purpose of avoiding overtime payment.

The Company and the Union recognize NOAA has designated the Program Manager as "key personnel" and has designated said Manager as the ISSO on site to perform work that is security sensitive. Due to accreditation laws and regulations there also must be a separation in duties. Therefore if the Program Manager implements or installs new programs as directed by NOAA the IT Administrators will maintain these implementations and installations and the Program Manager will audit said maintenance. This is understood by both the Company and the Union that this is vital to the security of the mission and therefore for the purposes of this agreement shall not constitute a violation of this agreement.

Each employee shall be given an assignment letter assigning the employee to a specific position on the first day of employment at the FCDAS, and each subsequent change thereafter in accordance with Section 1.12.

It is the intent of the Company to assign employees to positions that are the most desirous to the employee; however, operational requirements may preclude such an assignment.

When any reconfiguration occurs (added equipment for which NOAA has authorized formal training) the Company will discuss the effects of such reconfiguration with the Union prior to its implementation.

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The Company will make reasonable efforts to train present employees in the operation of new equipment.

1.07 Determination of Work Shifts. The determination of the starting and ending time of daily and weekly work shifts for individual employees, including extended workweeks on a continuing basis, shall always be made by the Company. Such schedules may be changed by the Company from time to time. However, if operations permit, the Company shall notify the employee of any contemplated "shift change" in writing at least seven (7) calendar days prior to the same. If the employee is not given at least four (4) calendar days' notice of shift change, the employee will be paid at the rate of time and one-half (1-1/2) for all hours worked on the first day of the new shift. Permanent shift changes resulting in an economic impact to an employee shall be subject to Section 1.12, Vacancies.

a. At the request of the employee and upon approval of their immediate manager, day shift personnel may shift their "regular shift" work schedule either earlier or later (still work a full shift) such hours shall be like hours (not to increase cost to the contract, i.e. no overtime or night shift differential) and should be contiguous.

1.08 Recognition of Union Shop Stewards. The number of shop stewards to be recognized by the Company shall be determined by mutual agreement of the parties. However, at no time shall the total number of shop stewards exceed eight (8), including a chief steward. The shop stewards shall be employees of the Company and shall be selected by the Union.

1.09 Duties of Union Stewards and Representatives. The duties and activities of the shop steward (except when otherwise specifically agreed between the parties) while acting as such in the jurisdiction which the shop steward represents, shall be limited to the handling of grievances and complaints that arise in the jurisdiction which the shop steward represents and in accordance with the grievance procedure, or to other recognized Company-Union business. Except when they are engaged in the settlement of grievances and complaints under the grievance procedure or other recognized Company-Union business, all Union representatives shall continue at their regular work in the same manner as other workers.

1.10 Access to Company Property and Records. The Business Representative of the Union may visit the Station at any time during the Company's regularly scheduled workday. The Union understands and agrees that when it is necessary for the Business Representative to visit the Station to confer with Union members on matters concerning the relationships existing between the Company and the Union as defined in this Agreement, the request for each visit shall be approved in advance by the Project Manager, or such designated representative. Such visits shall not interfere with normal Station operations.

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The Company will make available to the Business Representative or such authorized representative, such employee records and copies which may be necessary in the proper investigation of a grievance or complaint as may be reasonable and lawful to provide.

1.11 Introduction of New Employees. Each new employee within the bargaining unit shall be introduced to the Union stewards on duty by management, as soon as possible, but in no event later than five (5) working days after the employee reports to the supervisor for assignment.

1.12 Vacancies. Before new employees are hired to fill vacant positions, the Company shall transfer or promote from within the bargaining unit, if employees having the necessary skills or abilities to perform the work are available as determined by the Company. The approval of such transfer or promotion will not be unreasonably denied.

The Company shall notify the chief Union steward of all new or existent vacant positions to be filled. Within three (3) working days of such notice, a notice of vacancy or new position shall be posted in a designated, conspicuous place by the Company. Said notice shall remain posted for no less than two (2) calendar days on all shifts. Any employee desiring to apply for the vacant position may do so by signing the posted list. The employee selected to fill the vacancy shall be the senior qualified applicant as determined by the Company. The name of the selected employee shall be given to the Union in writing no more than ten (10) business days after a change in job classification becomes effective. All transfers or promotions shall become effective the day the transferred or promoted employee starts work in the new position. In no case shall the selection of the senior qualified applicant exceed fifteen (15) calendar days from the vacancy posting date.

Unless otherwise specified in this Agreement, all permanent transfers or promotions shall be at the mutual agreement of the Company and the employees. Nothing shall abridge an employee's right to accept a promotion.

The downgrade of an employee to a vacant position will be considered at the request of the employee on a case-by-case basis. The approval of such downgrades requested will not be unreasonably denied. The affected employee must accept the lower-rated pay scale beginning on the first day of work in the new position.

The Company is an Alaskan Native corporation. Therefore, the Company may affirmatively hire ASRC Shareholders who meet the qualifications to fill the vacancy in accordance with the Alaska Native Claims Settlement Act. The Company will allow the Union three (3) working days to provide an appropriate ASRC Shareholder for the vacancy. If the Union is unable to fill the vacancy with a shareholder, then the Company will advertise the position with the ASRC Shareholders. If the Company cannot produce an ASRC Shareholder within four (4) working days, then the position will return to the Union for dispatch.

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If the Company cannot find a fully qualified person and the position qualifications are modified, the Company will re-post the position internally and the bidding process will be reinitiated.

1.13 Hiring Procedure. The Company agrees to notify the Union of requirements for all applicants for employment in the positions covered by this Agreement. The Company shall exercise its management right to select those individuals who, in the sole opinion of the Company, are the most capable and qualified to fill existing vacancies.

The Union shall refer applicants for interviews and evaluations. Such referral by the Union shall be on a nondiscriminatory basis and shall not be based on, nor in any way affected by, Union membership, bylaws, rules, regulations, constitutional provisions, or any other aspects or obligations of Union membership policy or requirements.

The Union agrees that it will not discriminate against non-Union workers in referring applicants to the Company, and the Company agrees that it will not discriminate against Union members in selecting applicants referred by the Union. All employees must present a dispatch from the Union to the Company prior to beginning their first day of work.

If the Union cannot refer qualified applicants for employment within ninety-six (96) hours (exclusive of Saturdays, Sundays, and holidays) after notification of an opening, the Company shall utilize such other methods of employment as are at its disposal. The Company shall, without delay, notify the Union in writing of any employees so hired.

1.14 Temporary Hire Employees. Temporary hire employees may be utilized by the Company to replace regular employees absent due to vacation, special leave, unpaid leave of absence, absence for personal illness or injury, workers' compensation injury, and to staff special projects. Temporary hire coverage shall be for a minimum of five (5) working days and a maximum of ninety (90) calendar days unless the coverage period is extended by mutual agreement between the Company and the Union.

Temporary hire employees shall be eligible for and receive:

- a. Holidays occurring during their term of employment; provided, the temporary hire has been on the payroll for a minimum of thirty (30) calendar days.
- b. Trust contributions for all compensable hours.
- c. 401(k) contributions will be made on work hours only.

Temporary hire employees shall not be eligible for benefits such as, but not limited to, absence for personal illness or injury, jury duty, absence for personal reasons, severance pay, absence for death in the family, seniority, continuous service credit, and layoff and recall rights.

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The Company will place requests for temporary employees with the Union's dispatch hall after qualified laid off employees have been recalled. Laid off employees recalled as temporary will fall under these guidelines.

If an employee is currently on the recall list and accepts a temporary position in accordance to this Article, his or her recall rights will be extended by the length of time said employee works. If such employee works thirty (30) calendar days or more during any calendar year, his or her recall rights will be reset at the time he or she is returned to the recall list.

The Company will place requests for temporary employees with the Union's dispatch hall. The Union will be responsible for referring qualified candidates for temporary employment.

1.15 Dues Checkoff and Payroll Deduction. The Company, upon receipt of a written authorization signed by the employee (which authorization shall not be irrevocable for a period of more than one (1) year, or beyond the termination date of this Agreement, whichever occurs first), shall deduct from the employee's wages such employee's initiation fee and, on the payday of each month designated by the Company and the Union, the Union dues, and shall remit them to the duly authorized representative of the Union, together with a list of the names of the employees from whose pay deductions were made. The Union agrees to hold the Company free from all liability in connection with dues collections, except for the ordinary diligence and care in the transmittal of the monies to the Union.

The Company shall allow employees to use the payroll deduction system to deposit wages into credit unions or banks of the employees' choice, in accordance with the Company's payroll deduction policy. The Union agrees to hold the Company free from all liability in connection with credit union deductions, except for ordinary diligence and care in the transmittal of the monies to the credit union. The employee must adhere to the Company's regulations covering payroll deductions to credit unions.

1.16 Complaints. An employee, either directly or through their location shop steward, may verbally present a complaint to their supervisor. Complaints may be adjusted with or without the intervention of the Union as long as the adjustment is not inconsistent with the terms of this Agreement, and provided the location shop steward has been given an opportunity to be present at such adjustment.

1.17 Provisions against Discrimination. The Company and the Union agree that there shall be no discrimination by the Company or the Union against employees because of race, color, religion, national origin, ancestry, citizenship, gender, sexual orientation, gender identification, age, union affiliation, protected veteran status, or marital status, disability or any other factor prohibited by applicable law. It is understood wherever in this Agreement, employees or jobs are referred to in the male gender, it shall be recognized as referring to both male and female employees. In conjunction with Section 1.12, Vacancies, the Union recognizes that the Company may affirmatively hire ASRC Shareholders who possess the skills necessary to perform the duties required.

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1.18 Grievances. All grievances shall be presented as soon as practicable after the occurrences upon which the same is based, but in no event later than thirty (30) calendar days. The failure to submit a grievance within such period shall constitute a bar to further action thereon. If it is determined under the grievance procedure that an adjustment in wages is appropriate, such adjustment shall be applied retroactively to the date of occurrence; provided that such date is not more than thirty (30) calendar days prior to the date upon which the complaint was presented.

a. **Definition and Presentation of Grievances.** Grievance shall mean, and be limited to, disputes or differences between the Company and the Union, or employees so represented, with respect to the interpretation or application of any specific provision of this Agreement. If a resolution to a grievance cannot be reached between the Company and the employee and/or the shop steward, the grievance shall be reduced to writing and processed in accordance with the following steps.

Step 1: A Step 1 meeting will take place within ten (10) calendar days of receipt of the written grievance between the Project Manager, or the Company's designated representative, and the Union's Business Representative, or the Union's designated representative. The Project Manager shall make a reply in writing not later than ten (10) calendar days after the Step 1 meeting. If this reply is unsatisfactory, the grievance may be appealed to Step 2; provided such appeal is made within ten (10) calendar days following receipt of the reply. The employee's immediate supervisor and a location shop steward may be present at the Step 1 meeting.

Step 2: A Step 2 meeting will take place between the Director of Labor Relations in Employment of the Company, or the Company's designated representative, and the Union's business representative, or the Union's designated representative. The Company shall make a reply in writing not later than ten (10) calendar days after meeting with the Union's representative. The Step 2 meeting shall take place within ten (10) calendar days following the appeal to Step 2. If this reply is unsatisfactory, the grievance may be appealed to arbitration; provided written notice of such appeal is given to the Company within ten (10) calendar days following receipt of the Step 2 reply.

If the Company or the Union fails to reply within the time limits set forth in Step 1 or Step 2, the grievance will automatically progress to the next step. However, the time limits set forth above may be extended by mutual agreement of the parties.

b. **Arbitration.** Any grievance not satisfactorily disposed of in accordance with the steps of the grievance procedure outlined above, may be submitted to arbitration by either party. If the grievance is submitted to arbitration, the arbitrator selection process

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will commence no later than thirty (30) calendar days by either party requesting a list of arbitrators. However, this time may be extended by mutual agreement of the parties.

An arbitrator shall be selected pursuant to the Voluntary Labor Arbitration Rules of the American Arbitration Association or the Federal Mediation and Conciliation Service. Unless otherwise agreed, all arbitrations shall be processed and conducted in accordance with such Voluntary Labor Arbitration Rules.

The parties agree that the decision or award of the arbitrator shall be final and binding on each of the parties and that they will abide thereby, subject to such laws, rules, and regulations as may be applicable. The authority of the arbitrator shall be limited to determining questions directly involving the interpretation or application of specific provisions of this Agreement, and no other matter shall be subject to arbitration hereunder. The arbitrator shall have no authority to add to, subtract from, or to change any of the terms of this Agreement, to change an existing wage rate, or to establish a new wage rate. In no event shall the same question or issue be the subject of arbitration more than once. Each party shall bear the expense of preparing its own case. The cost of the arbitrator's services and any other expenses incidental to the arbitration, mutually agreed to in advance, shall be borne equally by the parties.

1.19 Discipline and Discharge. It is understood herein that the Company has the right to discipline or discharge an employee within thirty (30) calendar days after the Company learns an action has occurred which has established just and sufficient cause.

A discharged or suspended employee shall, at the time of such action, be furnished a discharged notice in writing setting forth the precise charge which has caused this action.

If an employee feels that the discharge or suspension was unjust, the employee shall be entitled to a hearing; provided the employee, or Union representative, submits a written request for the same within a ten (10) calendar day period following the employee's receipt of discharge or suspension notice.

When a discharged or suspended employee submits a request for a hearing in writing, the Company shall commence to conduct such hearing within the (10) calendar days from the date upon which the request is received. Such discharged or suspended employees shall have reasonable opportunity to secure the presence of, and be assisted by, the business representative or the Union representatives of their own choosing. The hearing will be conducted locally, and, upon completion of the hearing, the Company shall, within ten (10) calendar days, render its decision in writing. A copy of such decision shall be furnished to the discharged or suspended employee and Union representative.

If the hearing results in a decision favorable to the discharged or suspended employee, the employee shall be reinstated without loss of seniority and entitled to any loss in compensation as may be mutually agreeable between the parties. The service record of such employee shall be corrected as directed by the decision.

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If, as a result of the hearing, action is affirmed, the matter may be submitted to the grievance procedure.

The provisions of this Article do not apply to an employee still in the probationary period. The Company will consider reprimands or disciplinary action against an employee as cleared from the employee's record after a twelve (12) month period from the date of issuance; provided that there have been no further infractions during that period. The employee's record may be cleared earlier when, in the judgment of the Company, the employee's service record warrants such action; provided, such an employee makes such request through the employee's immediate supervisor.

1.20 Specified Activities not Permitted. The Union agrees that neither the Union nor its members shall solicit for membership on Company time, or conduct on Company time, any Union activity other than the handling of complaints and grievances in the manner and to the extent provided by the terms of this Agreement. Any employee who violates this Section of this Agreement shall be subject to disciplinary action by the Company.

**ARTICLE 2
SENIORITY**

2.01 Seniority Policy. The Company and the Union accept the principle of employee seniority commencing with the first date of the employee's unbroken continuous service at the FCDAS at Fairbanks, Alaska. The principles of seniority that apply, as set forth in this Article, are based upon the positions and groups as set forth in this Agreement. It is recognized that an employee's position is that person's primary responsibility; however, the employee is expected to perform work in other positions as required.

2.02 How Seniority is Acquired. Each employee shall have site seniority in the seniority group to which the employee is assigned. The starting date for the employee's site seniority shall be the first day of work at the FCDAS.

When two (2) or more employees otherwise would have identical seniority, seniority rank will be determined by alphabetical order of last names, the names commencing with "A" being the more senior. This procedure shall apply in all determinations of seniority. The seniority of an employee shall be lost or terminated under the same conditions that cause a break in continuous service and seniority as set forth in Section 2.04, Continuity of Service.

2.03 Continuous Service Credit. The principle of continuity of service is recognized in accordance with and subject to the provisions of this Agreement. For purposes of the Agreement, each employee shall have continuous service credit with the Company dating from the first date of the employee's unbroken service at the FCDAS facility.

2.04 Continuity of Service. The continuous service credit and seniority of an employee will be broken under the following conditions, and when so broken, such employee shall be, for all purposes, considered a new employee if and when rehired:

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- a. Resignation or voluntary termination of employment.
- b. Absence in excess of three (3) consecutive working days without notice, either by telephone, text message, or email to the employee's immediate supervisor, unless satisfactory evidence of inability to do so is shown.
- c. Discharge for just cause.
- d. Unauthorized absence after the time limit of an authorized vacation or an approved absence, unless satisfactory evidence of inability to report for work is shown.
- e. Failure to report to work after a layoff within ten (10) working days after the Company gives the employee notice to return to such work. Such notice shall be deemed to have been sufficiently given if sent to the employee by registered mail addressed to the last address furnished to the project administrator.
- f. Layoff without recall to work within one (1) year from the date of such layoff.
- g. Voluntary transfer from the FCDAS for a period of more than one (1) year.

2.05 Seniority of Union Representatives. As long as there is work available which they are capable of performing, the Union stewards shall hold seniority over all employees in their respective jurisdiction, position, and group. This Section shall apply only in case of layoff.

2.06 Seniority Privileges for Employees who are Transferred out of the Bargaining Unit. When an employee has established seniority privileges within the bargaining unit, and is or has been transferred to a position not included in the bargaining unit and such employee thereafter accepts employment within the bargaining unit within twelve (12) months, such employee is thereby deemed to have retained previously acquired seniority privileges within the bargaining unit, and to have accumulated such seniority privileges during the time in which the employee was employed in a position not covered by the bargaining unit.

2.07 Seniority for Employees on Leave. Unless specifically covered elsewhere in this Agreement, employees on leave of absence for any valid reason shall continue to accrue seniority for a maximum of twelve (12) months following the employee's departure.

2.08 Probationary Employees. Employees shall be considered on probation and not entitled to seniority until they have completed sixty (60) calendar days of continuous service at the FCDAS at Fairbanks, Alaska. Upon completion of said period of employment, the employee shall be considered a regular employee and the employee's seniority shall date from the start of the probationary period. There shall be no requirement that the Company later reinstate or rehire probationary employees if they are discharged during the probationary period.

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2.09 Seniority Lists. Once each year, approximately January 15th and as changes occur, the Company shall supply the Union with a seniority list of employees covered by this Agreement, and shall post such list on the Company bulletin boards for a period of thirty (30) calendar days. Any employee may contest the accuracy of their seniority status, and if an error is established, correction shall be made. After said thirty (30) calendar days, the seniority status of all employees shown on the list, as corrected, shall be incontestable.

2.10 Layoffs. The following procedure shall be followed in layoffs:

a. The employee having the least seniority in a position within the seniority group affected shall be the first laid off. The fact that the Floating O&M Technician is receiving additional pay does not prevent someone in a Floating O&M Technician position from being bumped from this position by an O&M Technician as a result of layoffs within the O&M Technician classification.

b. The seniority groups are identified as follows: Electronics, Antenna, IT, and Logistics. An employee may then displace another employee with the least bargaining unit seniority in any equal or lower-rated position within the seniority group; provided, the employee has more bargaining unit seniority than the displaced employee and is qualified and able to perform the work without loss of efficiency within thirty (30) calendar days and sixty (60) calendar days for shift workers, from the date the employee assumes the duties.

c. If such employee is unable to displace any employee within the employee's seniority group as provided above, the employee may exercise bumping rights in any other seniority group in any equal or lower-rated position; provided, the employee has more bargaining unit seniority than the displaced employee and is qualified and able to perform the work without the loss of efficiency within thirty (30) calendar days and sixty (60) calendar days for shift workers, from the date the employee assumes the duties.

d. Such employee must notify the Company in writing of their intention to exercise bumping rights within two (2) working days of the Company's layoff notice. An employee so displaced may similarly exercise seniority rights of displacing another employee in accordance with the same criteria.

e. If such employee is unable to displace any employee as provided above, the employee shall be removed from the payroll and placed on layoff. In all cases of layoff, the Company will give no less than two (2) weeks' notice of contemplated layoff to the employee affected, or at the Company's option, the employee may be paid up to two (2) weeks' pay in lieu of notice.

f. If such displaced employee is unavailable due to vacation, extended leave, etc., at the time the employee is displaced, the employee will, on their return, have up to forty-eight (48) hours on an unpaid temporary layoff basis to elect to exercise bumping rights or accept the layoff.

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2.11 Recall. For the purpose of reinstatement, all laid off employees shall be recalled in the following order: Laid off employees shall be recalled in order of seniority, the most senior qualified laid off employee being recalled first. Those laid off employees who are offered recall and who fail to make application for reinstatement within the time limit specified below, will lose all recall rights.

Notification of openings for reinstatement shall be sent by the Company by registered or certified mail to the last mailing address furnished by the employee. A copy of such notice shall also be sent to the Union. Within ten (10) working days after such notice is given, the laid off employee must advise the Company whether the employee accepts reinstatement. If no reply is received by the Company within ten (10) working days after notice is sent, the next employee on layoff may be reinstated. If no employee eligible for recall in accordance with the above remains on layoff, a new employee may be hired.

2.12 Seniority for Purposes Other Than Layoff and Recall. Seniority, when used for purposes other than layoff and recall (i.e., vacation scheduling), shall be based upon site seniority.

**ARTICLE 3
SAFETY**

3.01 Safety. In the event an employee identifies an unsafe condition, which in the employee's opinion could cause injury to the employee if the employee continued to perform the assigned work, the employee will advise the supervisor of the situation. The supervisor will promptly evaluate the alleged safety problem and act as follows:

a. If the supervisor determines there is clearly no risk of injury in the performance of the assigned work, the supervisor will so advise the employee and instruct the employee to continue the assigned work.

b. If the supervisor determines a risk or hazard may exist, the supervisor will promptly contact the management safety monitor and other qualified personnel as determined necessary to evaluate the risk.

c. Following the evaluation by the management safety monitor and other persons who may have been called in for consultation, the management safety monitor will render a decision.

d. If it is determined that no risk is present, or if immediate action is taken to eliminate the risk of injury, the employee will be so advised and instructed to continue work. In the event the assigned employee still refuses to perform the work, the employee will be suspended pending further review, and other qualified employees in the bargaining unit may be assigned. If no bargaining unit employees are available, the Company may utilize any other means to perform the work. The disagreement will be immediately referred to a joint review by the management safety monitor and the safety representative

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employed by the Union. The joint Company-Union review will be accomplished as promptly as possible.

e. If this review does not resolve the issue, an independent safety expert will be asked to review the work location and the alleged unsafe conditions, and will consult the management safety monitor, the supervisor, the employee involved, and the Union safety representative. The Union steward may be present for this review. An opinion will then be given based upon the majority decision of the Union safety representative, the management safety monitor, and the third party consultant, who will serve as chairperson.

f. The decision of the committee will be final, and if the work is deemed safe, the employee will be obligated to return immediately to normal duties. In such instance, the employee will not be compensated for any loss of pay resulting from the suspension. If it is determined that a hazardous condition existed, which may have resulted in injury to the employee, the temporarily suspended employee will be compensated for loss of pay resulting from the suspension and no employee will be assigned to such work until the condition has been corrected.

g. The third party safety consultant will be selected from OSHA representatives. If a qualified OSHA representative is not available in Alaska, selection shall be made from other independent sources, including governmental safety inspectors, engineering faculty members, or other qualified safety inspectors. An agreed upon list of such persons available for such an assignment will be prepared by the Company and the Union within sixty (60) calendar days of execution of the Collective Bargaining Agreement. The parties will share equally in the costs of employing the third party safety consultant, who will serve solely on a one-time basis to evaluate the alleged unsafe condition arising from an employee's refusal to work due to possible risk of injury. Shop stewards will meet once each month with their respective supervisors to discuss safety problems and practices in their activity.

h. The Employer shall drug test after an employee injury requiring medical attention beyond first aid by a health care provider. Drug testing shall be required after any vehicular accident, inclusive of personal vehicles if being used for work duties.

3.02 Medical Service, Evacuation Transportation, and Hospitalization. If the Company determines that an employee stationed at the site of work needs emergency hospital, medical, or surgical services beyond the capabilities of the local facilities, the Company shall provide evacuation transportation for the ill or injured employee to Fairbanks, Alaska.

ARTICLE 4
GENERAL WAGE AND LEAVE PROVISIONS

4.01 Wage Rates. The basic hourly wage rates for employees covered by this Agreement are contained in the Schedule 1.

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a. **Shifting Amounts from Wages.** Parties agree the Union may once a year, prior to November 1 of the current contract year, submit adjustments to the contribution rate (Health and Welfare and/or Pension or 401(k)) from the hourly wage rate, an amount not to exceed one dollar (\$1.00). Notice shall be in writing to the facility's Business manager. If the notice is not submitted by November 1 for the upcoming annual wage change, it will not take effect until the next annual wage change one (1) year later. This Section does not apply to an individual's contribution to 401(k).

4.02 Wage Administration. An employee shall progress from the entry rate of their position to the full rate in the rate range after one hundred eighty (180) calendar days. The employee will automatically be upgraded to the full rate effective on their one hundred eighty first (181) calendar day.

An employee who is promoted to a position in a higher wage grade and has been employed with the Company for one hundred eighty calendar days shall receive the full wage rate in the new position. Individuals who are upgraded on a temporary basis to cover for someone in a higher wage scale will receive the entry level rate for the covered position.

The established automatic progression schedule shall not preclude the Company from hiring an employee at the full rate if such action is necessitated by hiring difficulties experienced in the employment market.

4.03 Night Shift. Employees who work any hours between 7:00 p.m. and 7:00 a.m. shall be paid a shift differential rate of three dollars and fifty cents (\$3.50).

4.04 Height Time. Employees working on unprotected towers and structures in excess of twenty feet (20') above the surrounding base area will receive height time pay of one and one-half (1-1/2) times their applicable rate for such time as they are performing work. The employee shall receive a minimum of one (1) hour of height time pay per shift on any shift such work is performed. Unprotected refers to structures not normally intended for walking, climbing, or standing, or where stairways, ladders, or platforms are not equipped with protective railings or cages.

4.05 Overtime - Non-shift Employees. Overtime hours worked shall be determined and paid as follows:

a. One and a one-half (1-1/2) times the basic straight time hourly rate;

1. For hours worked before or after, but continuous with hours worked on a "regular shift" as outlined in Sections 4.08(a), (b), and (c), Call-In and Extended Hours Pay.

2. For hours worked in excess of eight (8) hours for employees working a normal work period or hours worked in excess of ten (10) hours for employees

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working a modified period in any one (1) regular workday or for hours worked in excess of forty (40) hours in any regular workweek.

- 3. For hours worked on the first scheduled day off and all others.
- b. Two (2) times the basic straight time hourly rate;
 - 1. For hours worked in excess of sixteen (16) in any continuous work period.

c. **Scheduled Overtime.** Overtime will be scheduled for a minimum of four (4) hours and will be paid at the applicable rate only for actual hours worked. The Company shall notify employees forty-eight (48) hours in advance of any scheduled overtime, unless mutually agreed upon between the Company and the employee.

When approved by the supervisor, an employee's absence of not more than eight (8) hours in any one (1) scheduled workday shall be treated as hours worked for overtime compensation purposes.

4.06 Overtime - Shift Employees. All work in excess of forty (40) hours in a work week shall be paid at one and one-half (1-1/2) times the basic straight time hourly rate. When approved by the supervisor, employees must work a minimum of eight (8) hours on a shift before compensated absences will be treated as hours worked for the computation of overtime.

- a. Call-ins shall be paid at one and one-half (1-1/2) times the basic straight time hourly rate as outlined in Sections 4.08(a), (b), and (c).
- b. SDOs be paid at one and one-half (1-1/2) times the basic straight time hourly rate.
- c. All work in excess of sixteen (16) hours shall be paid at two (2) times the basic straight time hourly rate.

4.07 Pyramiding of Overtime. No employee shall receive more than one (1) overtime rate for the same hours worked and, if more than one (1) overtime rate is applicable to the same hours worked, the higher rate only shall be paid.

4.08 Call-In, Extended Hours and Report to Work Pay.

- a. An employee called in to work with less than forty-eight (48) hours' advance notice and outside the employee's regular shift, shall be guaranteed a minimum of four (4) hours' pay. Actual hours worked during the call-in shall be paid at the applicable rate and any remaining hours not worked shall be paid at the straight time hourly rate.

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b. Call-in and extended hours with greater than forty-eight (48) hours' notice to the employee will be paid at one and one-half (1-1/2) times the basic straight time hourly rate for all hours worked. However, pursuant to Section 4.06(d), it is understood that all hours worked in excess of sixteen (16) will be at the double time (two times) rate.

c. When less than forty-eight (48) hours' notice is given, and the extended hours worked, before or after an employee's regular shift, exceed two (2) hours, the employee will be paid at the time and one-half (1-1/2) rate for the actual hours worked and straight time for the remaining hours required to meet the four (4) hour guarantee.

d. If required by NOAA, the NOAA operational rotating shift shall not consist of less than three (3) O&M Technicians without resulting in a call-in.

e. An employee reporting for work on the employee's regular shift shall be guaranteed a minimum of four (4) hours pay at the applicable rate, unless notified not to report at the end of the previous shift.

f. An employee who works more than four (4) hours of the regular shift shall be guaranteed the base rate pay for the regularly scheduled number of hours in the employee's established shift, or eight (8) hours, whichever is the lesser; provided, however, that (a), (c), and (d) of this Section shall not apply where a strike, earthquake, fire, flood, act of God, explosion, or bombing causes damage, which makes it impossible for the employee to resume work, or the employee leaves work on their own accord; in which case, the employee will be paid for the hours actually worked at the applicable rate.

g. If a NOAA operational rotating shift, on day shift, requires an additional O&M technician pursuant to Section 4.08 (d), the Company has the option to assign the dayshift floating O&M technician for up to four (4) hours not to exceed the first shift that created the requirement. If the dayshift floating O&M technician is unavailable, an O&M dayshift technician may be utilized.

h. **Call-In Procedure.**

1. The Company, at its option, may leave any position vacant for any length of time.

2. The Company shall offer to hold over an employee from the previous work shift who is currently working in the station that created the holdover, or leader if required. Not to exceed twenty-four (24) continuous work hours.

3. The Company shall call employees, in seniority order, normally assigned to the position that created the call-in requirement. The positions that can create a call in situation are Leader, Floater, Command Telemetry and 13 Meter.

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4. If the above call-in is not successful, the Company shall call, in seniority order, any qualified employee on the appropriate list to include dayshift O&M Technicians Friday night through Sunday day.

5. If the above call-in steps are not successful, the Company can reassign qualified employees on the shift requiring the call-in in order to determine the position that creates the call-in. The Company will then revert to this call-in procedure starting at number two (2) to fill the open position.

6. If the above is not successful, the least senior available, qualified shift employee contacted will be required to fill the vacancy.

7. The Company will provide the Shop Steward with a copy of the call in roster within two (2) working days of the completion of the call in shifts.

4.09 Severance Pay. An employee who meets the eligibility requirements defined herein, shall receive severance pay in accordance with the schedule set forth below in the event the employee is laid off for lack of work for a period in excess of thirty (30) calendar days. The focal date for severance pay eligibility shall be based on the employee's site seniority date. No employee shall receive severance pay when the layoff is due to causes beyond the control of the Company, such as, but not limited to, the following examples: fire, flood, explosion, bombing, earthquake, or picketing.

<u>Length of Continuous Service</u>	<u>Severance Pay Credit Allowance</u>
2 years, but less than 4 years	40 hours' pay
4 years, but less than 6 years	80 hours' pay
6 years, but less than 8 years	120 hours' pay
8 years, but less than 10 years	160 hours' pay
10 years, but less than 12 years	200 hours' pay
12 years or more	240 hours' pay

Payment shall be made on the basis of the employee's base straight time hourly rate at the time of layoff. Severance pay shall be paid at the end of a waiting period of thirty (30) calendar days from the date of layoff. An employee who is reinstated to employment with the Company during the thirty (30) calendar day waiting period, shall not receive a severance pay allowance.

An employee who received a severance pay allowance, and who is subsequently reinstated to employment with the Company within one (1) year from date of layoff, shall not again be eligible for an additional severance pay allowance until the employee has accumulated one (1) additional year of continuous service credit. Upon establishing one (1) year of additional continuous service credit after such reinstatement, the employee shall again be entitled to a severance pay allowance in accordance with the employee's continuous service credit if again laid off under the conditions herein provided.

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In the event of termination by NOAA of its contract with the Company, for work to be performed at the FCDAS at Fairbanks, Alaska, the severance pay allowance shall be observed as follows: An employee shall not receive severance pay if the employee, within thirty (30) calendar days after termination of employment or completion of the Company's contract with NOAA, whichever is later, is offered employment, or is employed by, or enters into an agreement for subsequent employment with a succeeding contractor under a follow-on contract in a position requiring the same, similar, or greater responsibility or skill.

4.10 Holidays and Holiday Pay. The Company recognizes the following holidays:

New Year's Day	Labor Day
Presidents Day	Thanksgiving Day
Good Friday	Day after Thanksgiving Day
Easter Monday	Christmas Eve Day
Memorial Day	Christmas Day
Independence Day	Floating Holiday

a. "Non-shift" employees shall observe the above holidays on the federally observed holiday.

b. "Shift" employees will observe the actual day of the holiday.

c. **Floating Holiday.** Employees will be allowed to observe one (1) floating holiday. This holiday can be taken at any time during the calendar year. It can be used in conjunction with a scheduled vacation or as a standalone day. Employees do not have the option to work the day and the holiday cannot be carried over into the next calendar year. The holiday must be approved by management and contingent on work requirements.

The above-mentioned holidays will be paid for, provided employees covered by this Agreement meet all of the eligibility rules set forth below:

a. The employee has thirty (30) calendar days' seniority as of the date of the holiday.

b. The employee has worked the last regularly scheduled working day before the holiday and the next regularly scheduled working day after the holiday. In cases where an employee has been excused or has received pay for a qualifying day, even though no work was performed, the employee will be eligible for holiday pay.

When one of the holidays falls within an eligible employee's approved vacation period and the employee is absent from work during the regularly scheduled workweek because of such vacation, the employee shall be paid for that holiday in addition to vacation pay. However, the employee, at their option, may choose to take the holiday pay, forego vacation pay and will not be forced to use their leave without pay.

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Employees with the necessary seniority, who have been laid off in a reduction of force or who have gone on an approved leave of absence during the week prior to or during the week in which the holiday falls or who return to work from layoff or leave of absence following the holiday, but during the week in which the holiday falls, shall be eligible for pay for that holiday.

Eligible day shift employees will receive eight (8) hours' pay and shiftwork employees will receive twelve (12) hours' pay at their regular base rate, exclusive of overtime, upgrades, or any other premium.

Employees working a four/ten (4/10) schedule will revert to a five/eight (5/8) schedule in a holiday week.

If a designated holiday falls on an employee's scheduled day off, the holiday will be observed on that day. The actual day of observance will be used to establish eligibility and premium pay. An employee working on a day actually observed as a holiday will receive time and one-half (1-1/2) for all hours worked in addition to holiday pay.

Employees who may be requested to work on a holiday and accept such work assignment, and then fail to report for and perform such work without reasonable cause, shall not receive holiday pay.

4.11 Payment for Time Spent Handling Grievances. All Union business and activity shall be on the employee's own time, except time spent solely during the regular scheduled workday on recognized Company-Union business and administration of this Agreement by shop stewards, adjustment of grievances during the complaint stage by the shop steward, and adjustment of grievances during Steps 1 and 2 of the grievance procedure by Union representatives when such meetings are held during regular work hours on Company premises. When a Union representative is required to leave regular duties as a worker for the orderly and expeditious handling of a grievance, complaint, or other recognized Company-Union business, the Union representative shall notify the appropriate supervisor. If necessary, a Union representative shall remain working until a reasonable time is afforded to provide a substitute in the Union representative's place, (four [4] hours maximum).

4.12 Competitive Labor Rates for Installation Teams. The Company shall pay non-bargaining unit installation or modification work teams, competitive labor rates consistent with the rates paid on Station to bargaining unit employees during their period of assignment to the Station. This Article shall not preclude the Company from paying non-bargaining unit installation teams per diem, travel pay, sick leave, or any other wage or benefit.

The Company shall give consideration to utilizing personnel from the local Union for these installation teams if the Union can dispatch qualified applicants.

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Qualified applicants that are assigned to such installation team work shall receive the NetCentric Technology, LLC. O&M Technician entry level rate of pay. Upon the Union's request, the Company will notify the Union in writing when such teams are on site, identify its members, wage rates, and assure that such members are being paid in accordance with this Section.

4.13 Rates for New or Revised Positions. In the event the Company establishes a new or revised position, the rate applicable shall be determined by negotiations between the Company and the Union. The Company shall notify the Union prior to the implementation of the new position. Unless otherwise agreed, the parties shall meet within one week of the position being established. Operations shall not be delayed through failure to agree immediately upon the rate applicable to any such positions. In such cases, pending the results of negotiations, the Company will establish the new or revised position and the Company proposed rate applicable thereto, and shall place such occupational classification and such rate into effect. A negotiated rate finally established, which is higher than the Company proposed rate, will be paid retroactive to the date the employee started to work in such position.

4.14 Vacation Policy. All vacation leave shall be scheduled for the following calendar year during the month of November, vacation requested at the beginning of November will be approved no later than December 15th, based on site seniority, but the Company reserves the right to schedule vacation leave if necessary. Changes to the vacation schedule posted in December, may be made throughout the year by the employee. The Company reserves the right to accept or reject these changes during the calendar year in order to ensure orderly and efficient operation. When an employee forgoes any or all of this scheduled vacation at the request of the Company, the employee shall be permitted to take such unused vacation within the following thirty (30) calendar days. The time for taking such rescheduled vacation shall be mutually agreed upon between the Company and the employee, giving consideration to the operating needs of the Company and the wishes of the employee.

It is the goal of the Company to grant vacations so far as practicable at times most desired by the employee. The Company will respond to a vacation request, outside of the December scheduling within five (5) business days. Vacation allowance shall be computed on the basis of the employee's base straight time hourly rate at the start of the employee's vacation, and shall be paid for at eight (8) hours per day for non-shift employees working a normal five (5) day per week, eight (8) hours per day work period, or ten (10) hours per day for employee working a modified four (4) days per week, ten (10) hours per day work period and twelve (12) hours per day for shift employees.

Where vacation use by employees working a four/ten (4/10) alternate schedule may negatively impact operations, the company may direct a return to the five-eight (5/8) schedule.

The Company reserves the right to consider operational needs and the necessity to ensure the orderly and efficient operation of the project when considering any vacation

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requests. Absence requests (to include vacation, leave without pay, leave of absence, or any combination thereof) will not be granted for longer than a thirty (30) calendar day period of which the thirty (30) calendar days does not include SDOs at the beginning or end of the absence. The thirty (30) calendar day period starts the first (1st) day of the absence request and ends the last scheduled day of the request. The employee must return to work for the equivalent number of calendar days that they were away from work before they can take any additional vacation.

Any vacation requests that are made outside of the December period may be for any amount of time requested as long as operational needs are met. The employee will not be required to return to work for the equivalent number of calendar days that they were away from work before they can take any additional vacation.

4.15 Vacation Eligibility. Employees will accumulate vacation eligibility pursuant to the following schedule:

<u>Years of Service</u>	<u>Accrual Rate / Month</u>	<u>Accrual Rate / Year</u>
Less than 1 year	8.33 hours per month	100 hours per year
1 to 4 years	13.5 hours per month	162 hours per year
4 to 9 years	18.16 hours per month	218 hours per year
9 to 14 years	19.5 hours per month	234 hours per year
14+ years	21.5 hours per month	258 hours per year

On approval of an employee's manager, the employee may be allowed to take forty (40) hours' of paid vacation allowance in one-tenth (1/10) hour increments.

In computing the above vacation, employees will accrue their vacation by pay period equaling twenty-six pay (26) periods per year for employees of the Company in accordance with the current pay schedule.

If an employee is terminating and works during the payroll period, they will accrue vacation for that payroll period.

4.16 Additional Vacation without Pay. An employee may be granted up to ten (10) working days of their regular scheduled shifts of unpaid vacation, in addition to the vacation allowance provided in Section 4.15, if granting of such leave would not hamper Station manning and requirements.

4.17 Payment in Lieu of Vacation.

a. An employee who is terminated or terminates for any reason shall be granted payment in lieu of any accrued, unused vacation.

b. In the event the Company cancels the vacation of an employee, the employee has the option of rescheduling according to Section 4.14, or receiving payment

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in lieu of rescheduling for such canceled vacation.

c. There will be a 480-hour cap placed on the total amount employees can accrue. Once an employee's hours fall below 480 hours, they will again begin accruing hours.

d. Employees may sell back up to forty (40) hours of accrued vacation hours once each calendar year. They must submit a written request to the Company between November 1st and November 30th of each year.

4.18 Absence for Personal Business and Illness or Injury.

a. **Personal Business.** Upon approval by the employee's immediate supervisor, an employee shall be paid for absence due to personal business, at the employee's base straight time hourly rate for a period of up to eighty (80) hours in any calendar year. Such paid and Personal Business time off shall be deducted from the employee's sick leave bank. Approvals of request for personal business shall not be unreasonably denied. However, Personal Business shall not be used before or after a scheduled vacation or a holiday without a manager's approval.

b. **Employee or Family Member Illness or Injury.** If medical certification is provided employees will be allowed to use sick leave (RX Leave) for personal or family member illness or injury. Absences resulting from a pre-scheduled appointment may be charged in one-tenth (1/10) hour increments when supported by medical certification of completion. In the event an employee becomes ill at work, an absence resulting from this illness may be charged in one-tenth (1/10) hour increments. It is agreed that the Company, at its discretion, may investigate all illnesses or absences of employees before the immediate supervisor authorizes payment for absences.

c. All RX leave will require a medical certificate if absent for two (2) or more consecutive days. However, when an employee is out on sick leave for multiple consecutive days, the medical certification issued will cover all days of sick leave. The employee will provide the RX slip before or at the time of returning to work. Should the employee fail to provide the RX slip as required, the days off will be deemed PB or leave without pay. The Company reserves the right to investigate all days of sick leave to verify the employee was in fact sick or injured as claimed for all days absent.

Absences resulting from a pre-scheduled appointment may be charged in one-tenth (1/10) hour increments when supported by medical certification of completion. In the event an employee becomes ill at work, an absence resulting from this illness may be charged in one-tenth (1/10) hour increments. The total maximum personal illness allowance, depending upon length of continuous service credit, shall be as follows:

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**Length of Continuous
Service Credit**

**Maximum
Absence Allowance**

less than 5 years

80 regular hours

5 years, but less than 10 years

160 regular hours

10 years or more

240 regular hours

The amount of sick time noted is a grant of time on January 1 of each year. If an employee's anniversary date is after January 1, then the increase in the grant amount will not happen until the following January 1. For example, if an employee's second anniversary date is February 16, he or she will be granted eighty (80) hours' of sick time on the following January 1. Employees hired after January 1 will be granted pro-rated sick time based on a biweekly pay period for the calendar year.

It is agreed that the Company, at its discretion, may investigate all illnesses or absences of employees before the immediate supervisor authorizes payment for absences.

Employees may be allowed to accumulate all of the employee's unused sick leave in a catastrophic illness account for the employee's use when hospitalized or for other unforeseeable accidents or serious illnesses of twelve (12) consecutive calendar days or more. Employees will be able to accumulate no more than a total of five hundred (500) hours in their catastrophic illness account. Catastrophic leave is for the employee's use only, not the catastrophic illness or injury of a family member.

The following procedure will be followed with regards to using the catastrophic illness account:

- a. Employees will be allowed to first use all their personal illness RX leave account balance.
- b. If necessary, the employee will then be allowed to use the remaining catastrophic account balance.
- c. The employee may then use all remaining personal business or vacation.
- d. **Donation of Vacation for Sick Leave.** Employees may donate vacation (a minimum of four [4] hours and a maximum of forty [40] hours per calendar year) for a donee's use when all paid time off has been exhausted by the donee as a result of long-term disability or catastrophic illness. Donated vacation may be used before receiving unpaid leave of absence.

1. Each employee wishing to donate vacation must submit a written request to the project manager with the following information:

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- A. Donee and donor names.
 - B. Number of hours to be donated in increments of not less than four (4) hours or a maximum of forty (40) hours per calendar year.
- 2. The Employer will transfer donated leave hours to the donee's vacation account for use.
 - 3. Once vacation leave donation is approved, the leave becomes irretrievable by the donor.
 - 4. Hours donated will be paid at the donor's rate.

4.19 Absence for Death in Immediate Family. In the event of death in an employee's immediate family, an employee shall be paid for a maximum of up to five (5) working days, not to exceed forty (40) hours, during the employee's regular workweek. For purposes of this Section, the employee's immediate family shall include the employee's mother, father, sisters, brothers, children, step-children, grandparents, grandchildren, aunts, uncles, nephews, nieces, spouse/domestic partner, and spouse's mother, father, and siblings. Payment for absences for death in the immediate family shall not be charged against the maximum absence allowance schedule stated in Section 4.18.

4.20 Absence for Temporary Disabling Illness or Injury. An employee having thirty (30) calendar days or more of continuous service credit, and who is found and certified by a physician to be unable to perform their regular assigned duties with the Company because of disabling illness or injury, shall receive a leave of absence without pay, but with service credit and seniority accumulating while such condition continues. If the disability continues beyond twelve (12) months and the employee has not returned to work, the employee's service credit and seniority will be broken and terminated.

4.21 Absence and Payment for Jury Duty. An employee with thirty (30) calendar days or more of continuous service credit who is called for jury duty or who is subpoenaed to appear in court in Alaska as a witness, will be compensated by the Company for the straight time hours lost from the employee's regular work schedule, not to exceed five (5) eight (8) hour days per week, computed at the employee's established basic hourly wage rate. However, when subpoenaed by a party other than the Company, the employee will not be compensated if the employee, the Company, or the Union is a party in the case, or if the employee has any direct interest or financial interest in the case. Payment shall be made so long as such jury duty or court appearance continues, but only upon presentation of documentary proof of jury duty or court appearance. Continuous service credit and duly established seniority privileges will accumulate during such leave.

4.22 Military Leave. Employees will be granted military leave consistent with the Uniform Services Employment and Re-employment Rights Act.

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4.23 Civic and Political Activities Leave. An employee may be granted a leave to participate in civic, social, or political activities that contribute to the general welfare and betterment of the community. For purposes of this Article, such activities shall include the following:

- a. Activities in support of political parties seeking to influence election of candidates to federal, state, or local office.
- b. Serving on school boards or councils, youth groups advisory committees, human rights organizations, and environmental protection groups.
- c. Participation in community or business-sponsored civic activities, such as the United Way and civil defense.
- d. A leave may be granted to an employee who is elected or appointed to a public political office.

Such leave shall be effective on the first scheduled working day of the absence. This leave shall be without pay, and seniority shall accumulate; however, this leave shall not be extended beyond twelve (12) months.

4.24 Leave of Absence for Union Activity. Any employee with at least six (6) months of continuous service credit shall, on written request of the Union, be granted a leave of absence without pay for Union activity for a one (1) year period. Extensions of one (1) year may be requested and granted on written request of the Union prior to the termination of such leave. Continuity of service and full seniority privileges shall be retained and accumulated during such leaves of absence. When the Union activity for which such leaves of absence is granted cease, the Union shall immediately notify the Company in writing, and if application is made therefore within ten (10) working days thereafter, such Union member will be given reinstatement to the employee's former position, if same still exists, or a comparable position in accordance with the employee's seniority privileges and at the applicable wage rate at the time of the employee's return. On written request of the Union and approval of the Company, employees shall be entitled to leaves of absence, without pay, to attend official Union conventions. The number of employees to be granted such leaves of absence will be discussed between the Company and the local Union.

4.25 Application for Leave of Absence. Except for military service, no application for a leave of absence as described in this Article will be considered, unless it is applied for in writing and presented to the project manager.

The Company may grant an unpaid leave of absence for a minimum period of fourteen (14) calendar days and a maximum period of ninety (90) calendar days in any calendar year. Such leave of absence, once approved by the Company and instituted, may not be prematurely terminated by the employee without the agreement of the Union and the Company. The number of employees who will be granted an unpaid leave of absence

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under this provision at any one time shall be dictated by mission requirements, and be at the discretion of management. Approval will not be unreasonably denied.

4.26 Other Approved Absence. Employees with thirty (30) calendar days or more continuous service credit may be granted a leave of absence without pay for death in the family, quarantine, marriage, or voluntary service with a government agency. Leaves of absence may also be granted for other miscellaneous reasons. Application for such approved absence should be made to the immediate supervisor in accordance with the provisions of this Agreement. Seniority privileges and continuous service credit shall accumulate during such leaves of absence for a maximum of twelve (12) months.

4.27 Temporary Off-Station Assignments. The following shall be the Company's policy with respect to the payment of wages and reimbursement of expenses to an employee who is on a temporary assignment at a location other than the FCDAS at Fairbanks, Alaska:

a. Coach air fare for the employee; the Company retains the right to establish reasonable costs with respect to air fare and ground transportation.

b. Ground transportation at actual cost, including automobile rental if authorized.

c. Government per diem rates for meals and lodging based on the Joint Travel Regulations (JTR) at the time of travel.

d. When consistent with operational requirements, the Company will make a reasonable attempt to schedule travel during an employee's regularly scheduled shift. Each off station day worked in Barrow, Alaska, outside of travel days, will be considered and worked as a twelve (12) hour shift.

e. If an employee is required to travel on a Scheduled Day Off (SDO), the employee shall be paid the lesser of actual travel time per day or eight (8) hours per day at the applicable SDO rate.

f. Travel time begins up to two (2) hours prior to scheduled airline departure, and will end upon arrival at the temporary off-station assignment location; the subsequent return will be treated likewise.

g. The Company will provide means of payment for anticipated travel expenses prior to the employee's departure. If a cash payment is advanced to the employee, seventy-five percent (75%) of the anticipated per diem will be allowed.

h. The Company will be responsible for the cost of transportation of tools and/or equipment needed at the off-site location, to include cold weather gear. The employee will be responsible for any additional costs incurred due to excess weight/size of personal items. Current airline weight/size guidelines will apply.

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The Company will reimburse the employee's out of pocket expenses within two (2) weeks of submission of a complete and correct expense voucher.

4.28 Trading Hours. Due to the nature of the Operations' shift schedule, individuals are restricted from participating in or accomplishing certain outside functions. In recognition of this difficulty, it is the intent of the Company to allow shift employees to make temporary coverage arrangements so they may have this time available to them without impacting the operation of the Station. The provisions of this Agreement are listed below:

a. This agreement is applicable when individuals in the Operations area wish to "trade" hours at the beginning or end of a shift with a qualified individual on the relieving (or relieved) shift.

b. The individual initiating the request shall be responsible for ensuring the agreement of the alternate party agreeing to the swap and coordination of the intended swap with the appropriate leader(s) and shop steward.

c. The time being traded may be in one-tenth (1/10) hour increments, not to exceed four (4) hours.

d. The approval of the operations' managers shall be obtained in advance of the anticipated event. A minimum of twenty-four (24) hours' prior notice is desired, but in order to provide as much flexibility to the employee as possible, shorter, prior notification will be considered. If, for any reason, this approval is not granted, the published schedule shall be followed.

e. The actual hours worked by affected individuals shall be accurately recorded and charged on the employees' timecards.

f. Deviations from the expected amount of overtime worked and paid to the individuals, and scheduled "pay backs" of such hours, shall be the responsibility of the employees. Such adjustments shall also be subject to the provisions of this agreement.

g. In no case shall any additional costs to the Contract be incurred as a result of utilization of these provisions by employees.

h. This policy shall be subject to review and may be terminated by the Company or the Union by written notice, but such termination shall not affect any previously approved swaps.

4.29 Double Dips. The Company will grant four (4) shift periods of double dips per calendar year. The double dips must be scheduled in December for the following year. A double dip is considered two (2) simultaneous absences in the same work group. Any double dip that is requested outside of December will be subject to management's discretion.

ARTICLE 5
GENERAL CONTRACT PROVISIONS

5.01 Emergency Situations. Definition of emergency situation:

- a. The occurrence of an act of God which affects Station operations, such as lightening, storms, earthquakes, floods, and fire.
- b. All illness or injury on the job which requires an employee to be absent from regularly assigned jobs.
- c. When an employee has to leave the job on short notice for some reason which is beyond the employee's control.
- d. Any operational spacecraft, Gilmore Creek NOAA Station, or equipment emergency, which may require immediate response by the Station.
- e. Any other condition jointly agreed upon by the Company and the duty shop steward.

In general, an emergency situation does not exist if the Company has control over the situation, a way to remedy the situation, and sufficient time in which to affect a remedy. An employee, not arriving at the start of a scheduled shift, who has called in prior to the beginning of shift does not constitute an emergency. However, an emergency situation does exist when an employee does not arrive at the start of shift, has not called in and cannot be contacted.

The emergency procedure is as follows:

- a. The Company will attempt to cover the position where the emergency exists with an on-duty, O&M Technician.
- b. If an O&M Technician is not available to cover such an emergency, the Company will cover the position where the emergency exists with an on-duty employee without restriction.
- c. If the emergency continues beyond twelve (12) hours, the Company will institute its "call-in" procedure as outlined in Article 4, Section 4.08. During the twelve (12) hours, the Company will offer the vacancy to the senior qualified O&M technician present at the station for the remainder of the rotating shift. The least senior qualified O&M technician present at the station may be required to fill the vacancy.

5.02 Customer Directed Suspension of Work. Government-directed suspension of work shall not be considered a layoff under Article 2, Section 2.10, under the following condition:

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a. An official, written notification of work stoppage from the government that does not allow the Company to satisfy the provisions set forth in Article 2, Section 2.10. Employees affected shall be laid off in seniority order; the least senior employee being laid off first. Shift change requirements shall not be required under this criteria. Affected employees shall be recalled to work in order of seniority; the most senior employee being recalled first. Affected employees shall be returned to the position and shifts they originally held. Employees who had their shifts changed due to the work stoppage, shall be returned to their original positions and shifts. Employees affected under the above work stoppage shall be made whole for lost economics if government funds are restored and designated for the affected employees during the term of the work stoppage.

5.03 Tools and Equipment/Identification Cards/Licenses. Employees shall be furnished with necessary tools, equipment and protective clothing including arctic gear, all of which shall be used only while at work for business purposes.

When an employee is required by the Company to obtain identification cards, licenses, or other documents necessary to perform their duties, or other requirements associated with their employment, the time so spent shall be considered time worked. The Company shall also reimburse any employee for the cost to obtain the above.

5.04 Union Bulletin Boards. The Company agrees to provide a suitable number of locked, enclosed bulletin boards for posting of Union publicity. Material posted shall be limited to notices of Union meetings, Union newspaper items, and Union recreational and social activities. Material posted shall have the prior approval of the Company. The project manager or Employee Relations representative shall have the authority to grant such approval. Such approval shall not be unreasonably withheld. It is further agreed that there shall be no other Union-related literature on Company property without prior approval by the Company.

5.05 Notices. Whenever notice is given under the terms of this Agreement, from either party to the other, it shall be in writing. Notice to the Company shall be addressed to the NetCentric Technology, LLC. Company Project Manager, FCDAS, 1300 Eisele Road, Fairbanks, Alaska, 99712. Notice to the Union shall be addressed to the Business Representative, Teamsters Local 959, 1453 University Ave. Fairbanks, Alaska, 99709. Employees shall keep the Company informed of their correct address, and in case of notice to such employees, it shall be by certified mail, with a copy to the Union business representative and the chief shop steward. Such notices shall be sent to the last known address furnished to the Company by the employee and shall be deemed to have been given as of the date receipted for, or if returned to the Company due to the employee's having failed to keep the Company informed of the correct address, the date such notice is returned.

5.06 Health and Welfare Plan-Alaska Teamsters. With respect to employees represented by this Agreement, the Company agrees to participate as an individual Employer in the Health and Welfare Plan established by the Teamster Trust Agreement,

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dated January 30, 1960. It is understood and agreed that under the provisions thereof, the Company shall, effective the first (1st) month after ratification of this Agreement, make monthly contribution to the plan for bargaining unit employees based on their tier selection as set forth in the table below. The Employer shall contribute one hundred percent (100%) of the "Employee Only" amount, ninety percent (90%) of the "Employee Plus" amount, and eighty-five percent (85%) of the "Family" amount.

PLAN	Employer Contribution	Employee Cost	Total Cost
Employee Only	\$1,392.00	\$0	\$1,392.00
Employee Plus	\$1,876.50	\$208.50= 10%	\$2,085.00
Family	\$2,363.00	\$417.00= 15%	\$2,780.00

Upon notification from the Health and Welfare Plan, the dollar amount of the Employer's contribution for each tier will be increased no more than seven and a half percent (7.5%) to cover any premium increase.

The Employer contribution amounts set forth herein are maximums. The Employer shall not be obligated to make any payment in excess of such amounts. The employee shall be responsible to pay any difference between the actual premium charged by the plan and the Employer's contribution amount.

Contributions for newly hired employees shall be made in accordance with the following:

The Company will pay a monthly flat rate equal to fifty percent (50%) of the current "family rate" per month for the first two (2) months the employee is employed. "Month" means any part of the physical month that the employee is paid for actual work. During the third (3rd) month of employment the company will make the contribution based on the tier designated by the employee.

The Company's Cafeteria Plan, qualified under Code section 125, provides eligible bargaining unit employees the opportunity to elect to have their contributions to Health and Welfare premiums, if required under the CBA, deducted from their paycheck on a pre-tax basis.

The Company agrees to make available to the eligible bargaining unit employees a Section 125 Payroll Deduction option for the purposes of making a pre-tax monthly payment of the employee's co-payment for health and welfare benefits.

To be eligible for the Employer's contribution for any month, the employee must have at least one compensable hour in the previous month.

Such contributions shall be for the purpose of group insurance as specified in said Trust Agreement.

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5.07 Alaska Teamster Pension Plan. With respect to employees represented by this Agreement, the Company agrees to participate as an individual Employer in the Alaska Teamster Pension Plan.

It is understood and agreed that the Company shall, effective on the month following the ratification date of this agreement, contribute seven dollars and seventy cents (\$7.70) for each compensable hour accredited to the employees. It is understood that the contributions are to be computed solely on the total number of compensable hours and are not to be included in the hourly wage rates or in the computation of overtime.

Effective June 1, 2024, the Company shall contribute seven dollars and ninety cents (\$7.90) for each compensable hour accredited to the employees. It is understood that the contributions are to be computed solely on the total number of compensable hours and are not to be included in the hourly wage rates or in the computation of overtime.

Effective June 1, 2025, the Company shall contribute eight dollars and ten cents (\$8.10) for each compensable hour accredited to the employees. It is understood that the contributions are to be computed solely on the total number of compensable hours and are not to be included in the hourly wage rates or in the computation of overtime.

5.08 Alaska Teamster-Employer Service Training Trust. The Company shall contribute twenty-five cents (\$0.25) for each hour of compensation earned by each employee during a given month to the Alaska Teamster-Employer Service Training Trust, for the purpose of training and upgrading as specified in said Trust Agreement. The parties will evaluate the services received from the Training Trust and determine the Employer's continued participation in the Trust on an annual basis.

The details of the Plan will be determined by the Board of Trustees of the Alaska Teamster-Employer Service Training Trust in accordance with the Trust Agreement which created the Trust Fund. The Employer and the Union agree to be bound by said Trust Agreement and all lawful amendments thereto, and do further agree to accept as their representatives the Employer-trustees and Union-trustees who constitute the Board of Trustees of said trust fund and their lawful successors.

5.09 Security Clearance. Nothing in this Agreement shall require the Company to employ or continue to employ or to give access to any of its facilities or work locations, any persons to whom the cognizant Security Agency refuses to give access to classified information and/or work. The Union agrees that it will not file a grievance where the Company has removed from the payroll any employee who cannot receive a security clearance or whose security clearance has been revoked.

Notwithstanding the above, the Company and the Union will make an effort to keep the affected employee in an area or job position outside the sensitive area. In the event there is no work available outside the sensitive area(s) and the employee is refused a security clearance by the cognizant agency or has an existing clearance revoked, the affected employee will be placed on layoff and granted severance pay, if otherwise eligible.

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5.10 Effect of Law. In the event that now or hereafter there is any state or federal law or any directive, order, rule, or regulation made pursuant thereto, which is in conflict with any provision or provisions of any agreement between the parties, the same shall supersede such provision or provisions and thereafter shall govern and control the relations and conduct of the parties so long as such law, directive, order, rule, or regulations shall remain in force and effect. In the event this or any other agreement existing between the parties hereto, now or thereafter, requires the approval of any government authority before becoming effective, the same will and shall be subject to such approval. Furthermore, it is mutually agreed that within thirty (30) calendar days after such provision or provisions become unlawful, the parties shall meet to negotiate a modification of such provision or provisions to comply with the law. In all other respects, the provisions of this Agreement shall continue in full force and effect for the duration of this Agreement.

5.11 Successors and Assigns. In the event the Company sells or merges its business operations to or with another company, this Agreement shall be binding upon said company.

5.12 Mutual Agreements. After this Agreement has been signed and approved by the Secretary-Treasurer, International Brotherhood of Teamsters, Local 959, and the President/COO of the Company or their designated representatives, no provision of any said Agreements may be modified, changed, or amended during the life of the Agreement, except by mutual consent in writing between the Union and the Company, and only at a conference called for such purpose by the parties.

5.13 Waiver. The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining, and that the understandings and agreements were arrived at by the parties after the exercise of that right and opportunity as set forth in this Agreement. Therefore, the parties, for the life of this Agreement, voluntarily and unequivocally waive the right; and each agrees that the other shall not be obligated to bargain collectively with respect to any subject or matter referred to or covered in this Agreement.

5.14 Strikes, Lockouts, and Related Interruption of Work. There shall be no strike, work stoppage, slowdown, sit-down, meetings not authorized under this Agreement, refusal to handle merchandise, refusal to work, boycott, or picketing by the Union or its representatives or members, or lockout on the part of the Company, during the term of this Agreement. If a strike should occur, management and all other personnel not covered by this Agreement, including all professional employees, supervisors, and guards, shall be permitted to perform their respective functions without interference by the Union or its members. Recognizing that the Company and the Union agree that continuity of work is imperative to the mission of NOAA, the Union agrees there shall be no work stoppages due to jurisdictional disputes.

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5.15 Galley. All employees will have galley and coffee mess privileges during working hours for preparing and eating meals. It is understood by the parties there will be no recognized lunch period. If employees abuse the privilege of eating lunch during their work hours, such abuse will be called to the attention of the Union. The Company and the Union, jointly, will work to correct the situation. The correction of the abuse may include discipline by the Company. Failure by the parties to correct the situation will result in the Company scheduling one-half (1/2) hour unpaid lunch periods.

5.16 Definitions.

a. **“Regular Workweek”** - Regular workweek for all employees shall begin at 12:00 a.m. Saturday and end at 12:00 a.m. the following Friday night (i.e., seven (7) consecutive regular workdays, Saturday to Friday inclusive). All continuous hours worked in a work shift that begins on the seventh (7th) regular workday shall be compensated for in the workweek in which the shift started.

b. **“Regular Workday”** - For the determination of overtime worked in the regular workweek on scheduled days off and on holidays, the calendar day (i.e., from 12:00 midnight to 12:00 midnight - twenty-four (24) consecutive hours) shall be used. In all cases, the first regular workday in the regular workweek will begin at the time the regular workweek begins (normally 12:00 midnight); and hours worked on a shift starting in the regular workday shall be counted as worked in such regular workday.

c. **“Regular Shift”** - A regular shift shall be scheduled in advance and shall consist of a specified number of consecutive hours, inclusive of any designated meal period.

d. **“Scheduled Day Off”** - A scheduled day off shall be a calendar day during which no regular shift is scheduled to start for the employee.

e. **“Normal Work Period”** - For employees assigned to the rotating schedule, the employee's normal work period will consist of the following work situations: the regular work period, four (4) days, followed by four (4) days scheduled days off as designated in Appendix A.

f. **“Normal Work Period”** - For employees assigned to a forty (40) hour workweek, the employee's normal work schedule will consist of five (5) consecutive workdays per week, eight (8) hours per day, with two (2) consecutive days in which the employee is not regularly scheduled to work. With management approval, an employee will have the option to work a modified work period of four (4) consecutive days of ten (10) hours per day, with three (3) consecutive days in which the employee is not regularly scheduled to work. A modified work period will not create an economic impact for the Company.

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g. **“Training Work Schedule”** - For employees assigned to on-site training for a week or more, the employee’s work schedule will consist of five (5) consecutive days work per week, nine (9) hours a day, inclusive of any meal period, with two (2) consecutive workdays in which the employee is not scheduled to work. Employees assigned to a full day of off-site training will be paid eight (8) hours per day. Entering the training schedule, the rotating shift scheduled days off shall be waived. When employees work the sixth (6th) or seventh (7th) day, applicable rates will apply.

5.17 Recognition of Rights and Functions of Management. Except as otherwise expressly provided in this Agreement, nothing herein shall limit the Company in the exercise of the rights and functions of ownership or management; and such rights and functions of ownership or management shall not be subject to arbitration in any respect. Accordingly, the Company, has among others, the right: to select its supervisory personnel (supervisors as defined in the NLRA, as amended), to hire new employees, and to direct the workforce; to discipline, suspend, or discharge employees for cause; to promote, transfer, lay off employees; to make and enforce such rules and regulations as the Company considers necessary or advisable for the orderly and efficient conduct of its business, and to require employees to observe such rules and regulations, provided the same are not inconsistent with the express provisions of this Agreement; the Company has the right to decide the number and location of this workforce; to decide and determine the methods, quality standards, and schedules of operation; and to determine and designate all occupational classifications it has to offer its employees. It is agreed that the enumeration of the rights and functions of management herein reserved shall not be deemed to exclude other rights or functions of ownership or management not so enumerated.

All of the above-mentioned management rights are not to be interpreted as being all-inclusive, but merely indicate the types of rights which are reserved to management. However, the above rights may not be used to implement or effect any changes that are mandatory subjects of bargaining, as defined by the National Labor Relations Act (NLRA).

5.18 Supplemental 401(k) Plan Contributions.

a. **Employer Contributions.** Each employee will receive an Employer contribution into the Supplemental 401(k) Plan for each hour worked as follows:

Effective the first pay period following the effective date of this agreement, one dollar and twenty-five cents (\$1.25) per hour worked.

Effective June 1, 2024, The Company will contribute one dollar and thirty-five cents (\$1.35) per hour worked.

Effective June 1, 2025, The Company will contribute one dollar and forty-five cents (\$1.45) per hour worked.

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b. **Employee Contributions.** In accordance with the agreement reached between the parties, the employees covered by this Collective Bargaining Agreement will be eligible to participate in the Supplemental 401(k) Plan under the terms and conditions contained herein. Participation will be voluntary, but will be governed exclusively by the terms and provisions of the Plan.

In consideration of this agreement to allow participation by unit employees, the Union hereby acknowledges and waives any right it may have to request bargaining over any feature of the Plan or participation in the Plan by any employee represented by the Union. This waiver shall remain in full force and effect while any represented employee continues to participate in the Plan and shall be deemed by the parties to be irrevocable for that period of time.

5.19 Term and Notice of Change or Termination. This Agreement shall be effective June 1, 2023 and shall continue in full force and effect through 11:59 p.m. May 31, 2026, and thereafter be automatically renewed from year to year from the 1st day of June through the 31st day of May, unless notice in writing shall be given by either party to the other of changes desired in the Agreement or of its termination, at least sixty (60) calendar days prior to May 31, 2026, or sixty (60) calendar days prior to a subsequent applicable expiration date after automatic renewal.

If the parties do not reach an agreement with respect to such proposed changes, or a new agreement in event termination notice has been given prior to said expiration date, then this Agreement shall terminate on its expiration day. The parties may, however, by mutual consent, extend this Agreement for a period of time specified to allow further negotiations.

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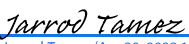
IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their authorized representatives as of the day and year first written above.

SIGNED FOR THE UNION:

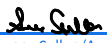
By: 
Gary Dixon
Secretary-Treasurer

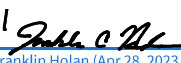
Date: Apr 28, 2023

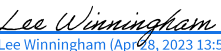
By: 
Jeremy Holan (Apr 28, 2023 11:14 AKDT)
Jeremy Holan
Business Representative

By: 
Jarrod Tamez (Apr 28, 2023 11:16 AKDT)
Jarrod Tamez
Business Representative

By: 
Paul J Henderson (Apr 28, 2023 11:40 AKDT)
Paul Henderson
Committee Member

By: 
Suzanne Cullen (Apr 28, 2023 11:46 AKDT)
Sue Cullen
Committee Member

By: 
Franklin Holan (Apr 28, 2023 13:46 AKDT)
Frank Holan
Shop Steward

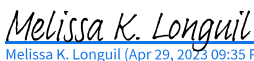
By: 
Lee Winningham (Apr 28, 2023 13:50 AKDT)
Lee Winningham
Committee Member

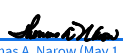
SIGNED FOR THE COMPANY:

By: 
George W. Morrow (Apr 29, 2023 08:42 EDT)
George Morrow
Vice President, Civil Programs

Date: Apr 29, 2023

By: 
Clayton Morad
Clay Morad
Vice President NOAA operations

By: 
Melissa K. Longuil (Apr 29, 2023 09:35 PDT)
Melissa Longuil
Director, Labor Relations

By: 
Thomas A. Narow (May 1, 2023 09:30 AKDT)
Tom Narow
Project Manager

APPENDIX A

NetCentric Technology LLC CBA

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

19	25	26	MAR 3	4	10	11	17	18	24
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1900 B B D D D D C	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A	C C C A A A A
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1900 A A A C C C C	A A A A B B B	B D D D D B B	B D D D D B B	B D D D D B B	B D D D D B B	B D D D D B B	B D D D D B B	B B B D D D D	B B B D D D D
0700 S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S
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0700 C C C C A A A	A C C C C A A	A A B B B B D	A A B B B B D	A A B B B B D	A A B B B B D	D D D B B B B	D D D B B B B	D D D B B B B	D D D B B B B
1900 B B B B D D D	D B B B B D D	D D C C C C A	D D C C C C A	D D C C C C A	D D C C C C A	A A A C C C C	A A A C C C C	A A A C C C C	A A A C C C C
0700 S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S
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1900 C A A A A C C	C C A A A A C	C C A A A A C	C C C A A A A	C C C A A A A	B B B B D D D	B B B B D D D	B B B B D D D	D B B B B D D	D B B B B D D
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1900 D D B B B B D	D D D B B B B	D D D B B B B	D D D B B B B	D D D B B B B	B D D D D C C	B D D D D C C	B D D D D C C	C C A A A A C	C C A A A A C
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0700 B B B D D D D	B B B B D D D	D B B B B D D	D B B B B D D	D B B B B D D	D D B B B B D	D D B B B B D	D D B B B B D	D D D C C C C	D D D C C C C
1900 C C C A A A A	C C C C A A A	A C C C C A A	A C C C C A A	A C C C C A A	A A C C C C A	A A C C C C A	A A C C C C A	A A A B B B B	A A A B B B B
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Fairbanks Command and Data Acquisition Station

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10 0700 A A A C C C C 1900 D D D B B B B 0700 S S S S S	16 17 A A A A B B B D D D D C C C S S S S S	23 24 B D D D D B B C A A A A C C S S S S S	30 31 B B D D D D B C C A A A A C S S S S S	APR 6 7 B B B D D D D C C C A A A A S S S S S	13
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19 0700 C A A A A C C 1900 B D D D D B B 0700 S S S S S	25 26 C C A A A A C B B D D D D B S S S S S	1 2 JUN 8 C C C A A A A B B B D D D D S S S S S	9 15 B B B B D D D C C C C A A A S S S S S	16 22 D B B B B D D A C C C C A A S S S S S	22
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1 SEP 0700 D D D D B B B 1900 A A A A C C C 0700 S S S S S	7 8 B D D D D B B C A A A A C C S S S S S	14 15 B B D D D D B C C A A A A C S S S S S	21 22 B B B D D D D C C C A A A A S S S S S	28 29 B B B B D D D C C C C A A A S S S S S	OCT 5

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Fairbanks Command and Data Acquisition Station

6	12	13	19	20	26	27	2	3 NOV	9
0700	D C C C C A A	A A C C C C A	A A A C C C C	A A A C C C C	A A A C C C C	A A A C C C C	C A A A A C C	C A A A A C C	
1900	A B B B B D D	D D B B B B D	D D D B B B B	D D D B B B B	D D D B B B B	D D D B B B B	B D D D D B B	B D D D D B B	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
10	16	17	23	24	30	1 DEC	7	8	14
0700	C C A A A A B	B B B D D D D	B B B B D D D	B B B B D D D	D B B B B D D	D B B B B D D	D D B B B B D	D D B B B B D	
1900	B B D D D D C	C C C A A A A	C C C C A A A	C C C C A A A	A C C C C A A	A C C C C A A	A A C C C C A	A A C C C C A	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
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0700	D D D B B B B	D D D D C C C	C A A A A C C	C A A A A C C	C C A A A A C	C C A A A A C	C C C A A A A	C C C A A A A	
1900	A A A C C C C	A A A A B B B	B D D D D B B	B D D D D B B	B B D D D D B	B B D D D D B	B B B D D D D	B B B D D D D	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
19	25	26	1	2 FEB	8	9	15	16	22
0700	C C C C A A A	A C C C C A A	A A B B B B D	A A B B B B D	D D D B B B B	D D D B B B B	D D D B B B B	D D D B B B B	
1900	B B B B D D D	D B B B B D D	D D C C C C A	D D C C C C A	A A A C C C C	A A A C C C C	A A A C C C C	A A A C C C C	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
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23	1	2 MAR	8	9	15	16	22	23	29
0700	B D D D D B B	B B D D D D B	B B B D D D D	B B B D D D D	C C C C A A A	C C C C A A A	A C C C C A A	A C C C C A A	
1900	C A A A A D D	D D A A A A C	C C C A A A A	C C C A A A A	B B B B D D D	B B B B D D D	D B B B B D D	D B B B B D D	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
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0700	A A C C C C A	A A A C C C C	A A A A C C C	A A A A C C C	C A A A A B B	C A A A A B B	B B D D D D B	B B D D D D B	
1900	D D B B B B D	D D D B B B B	D D D D B B B	D D D D B B B	B D D D D C C	B D D D D C C	C C A A A A C	C C A A A A C	
0700	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	S S S S S	
4	10	11	17	18	24	25	31		
0700	B B B D D D D	B B B B D D D	D B B B B D D	D B B B B D D	D D B B B B D	D D B B B B D			
1900	C C C A A A A	C C C C A A A	A C C C C A A	A C C C C A A	A A C C C C A	A A C C C C A			
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NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

Each January 1, the Company may implement a new Appendix A work schedule which shall remain in place until the following January 1, unless a directive by the government necessitates an earlier change in such schedule.

In the event the Company subsequently implements a new schedule, it shall provide thirty (30) days' advance written notice to the Union and employees shall be allowed to maintain or reschedule their vacations within the vacation year under the scheduling provisions of the Agreement. In the event of exigent circumstances which prevent thirty (30) days' written notice, notice shall be given as soon as practicable. Without limiting the right of the Company unilaterally to change the schedule at the end of the notice period, Company agrees that, at the union's request, it will meet with the union during such notice period to discuss the reasons for the change.

**SCHEDULE 1
WAGE RATES**

Increases in wage rates for each classification are as set forth below.

WAGES

	Current		6/1/2023		6/1/2024		6/1/2025	
Shift Lead		\$60.34		\$63.96		\$67.16		\$69.84
Shift Float		\$56.32		\$59.70		\$62.68		\$65.19
Day Float		\$56.32		\$59.70		\$62.68		\$65.19
O&M Tech	\$49.36	\$54.99	\$52.32	\$58.29	\$54.94	\$61.20	\$57.14	\$63.65
Antenna Tech		\$60.34		\$63.96		\$67.16		\$69.84
IT	\$49.36	\$54.99	\$52.32	\$58.29	\$54.94	\$61.20	\$57.14	\$63.65
Logistics	\$46.95	\$51.61	\$49.77	\$54.71	\$52.26	\$57.44	\$54.35	\$59.74

- Wage escalation to be effective the first full pay period after the dates above.

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

LETTER OF UNDERSTANDING NO. 1

By and Between

NETCENTRIC TECHNOLOGY, LLC.

and

TEAMSTERS LOCAL 959

The Company and the Union agree to work together to develop a description of the qualifications for the various job positions at the Fairbanks Command and Data Acquisition Station. These descriptions will include the minimum qualifications required, as well as the preferred qualifications. Both parties agree to have these job descriptions completed May 31, 2026, unless mutually agreed to extend this date. The parties further agree to meet and work together if any of these job descriptions requires updating.

SIGNED FOR THE UNION:

SIGNED FOR THE COMPANY:

By: _____
Jeremy Holan
Business Representative

By: _____
Melissa Longuil
Director, Labor Relations

Date: _____

Date: _____

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

LETTER OF UNDERSTANDING NO. 2

By and Between

NETCENTRIC TECHNOLOGY, LLC.

and

TEAMSTERS LOCAL 959

The Alaska Teamster-Employers Pension Trust (ATEPT or Trust) adopted a rehabilitation plan in accordance with ERISA Section 305, The Pension Protection Act of 2006. The Employer agrees to adopt the amounts as depicted in the Rehabilitation (Preferred) Plan as set forth below, as follows:

Supplemental Employer Contribution

Effective upon execution – two dollars and ninety-four cents (\$2.94) per compensable hour.

If at any time during the term of this Agreement, the Supplemental Employer Contribution percentage is reduced or suspended, or eliminated due to the improvement of the Alaska Teamster-Employers Pension Trust Fund, the parties agree to meet and discuss where the monies will be reallocated within the wage/benefit package by Teamsters Local 959.

The Company may request a notice of funding status each quarter with an executive summary describing the changes in method, changes in status, and any other pertinent information regarding the Trust and its status. The Company may request the annual audit report for the Trust. The Trust shall transmit such notices on written request within reasonable period of time not to exceed thirty (30) days unless a longer period is required, or agreed upon.

At such time as the Trust is rehabilitated (is no longer in a critical status); the Trust shall provide the Company written notification within one hundred twenty (120) days.

The Company shall not be obligated to make any reallocations and adjustments to the Teamsters Local 959 Training Trust or to the base hourly rates if the Company does not receive timely notice (no less than sixty (60) days from the Trust.

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

The Agreement only covers the term of the existing Collective Bargaining Agreement in effect June 1, 2022 through May 31, 2026. Notwithstanding the forgoing, the Company shall be under no obligation to make wage payments or contributions to the Plans after the termination of its contract with the Fairbanks Command and Data Acquisition Center. For example, if the Company's contract with the Fairbanks Command and Data Acquisition Center terminates on August 30, 2022, and no follow-on contract is awarded to the Company, then the Company's obligation to pay wages and to make contributions shall cease upon that date. The Company shall, however, be obligated to make wage payments and contributions for hours worked prior to that date.

SIGNED FOR THE UNION:

SIGNED FOR THE COMPANY:

By: _____
Jeremy Holan
Business Representative

By: _____
Melissa Longuil
Director, Labor Relations

Date: _____

Date: _____

NETCENTRIC TECHNOLOGY, LLC.
Fairbanks Command and Data Acquisition Station

LETTER OF UNDERSTANDING NO. 3

By and Between

NETCENTRIC TECHNOLOGY, LLC.

and

TEAMSTERS LOCAL 959

Re: Drug and Alcohol Testing

The following constitutes the agreement between NetCentric Technology, LLC.(the "Company") and Teamsters Local 959 (the "Union") reached as part of the negotiations for the successor collective bargaining agreement ("Agreement") to the agreement terminated on May 31, 2026.

In the event that, during the term of the Agreement, the Government requires the Company to conduct drug or alcohol screening of bargaining unit employees, the parties agree to meet and bargain a drug and alcohol policy including drug and or alcohol screening.

SIGNED FOR THE UNION:

SIGNED FOR THE COMPANY:

By: _____
Jeremy Holan
Business Representative

By: _____
Melissa Longuil
Director, Labor Relations

Date: _____

Date: _____